

Jayant Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 December 2020 · WRIT - C No. - 19044 of 2020 · **Writ disposed of; consumer relegated to clause 6.5.**

HEADNOTE

A consumer who disputed the accuracy of an electricity bill and sought certiorari against a Tehsildar recovery notice, with mandamus to correct the bill under clause 6.5 and to pay in installments, was directed to approach the competent authority under clause 6.5 of the U.P. Electricity Supply Code, 2005 within 15 days. That authority was to consider the case and pass orders in accordance with law within one month. The writ was disposed of without examining the bill or the recovery notice on merits.

FACTUAL SUMMARY

Jayant Singh challenged a recovery notice dated 29 July 2020 issued by the Tehsildar, Tehsil Sadar, District Mainpuri, and sought mandamus to correct a disputed electricity bill and to permit payment in easy installments. He disputed the accuracy of the bill issued by the distribution corporation. The corporation's counsel submitted that the consumer had a statutory remedy before the competent authority under clause 6.5 of the U.P. Electricity Supply Code, 2005, and that the authority would consider any approach and pass an appropriate order within the stipulated period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bill — relegation to competent authority

HOLDING

Where the consumer disputed the accuracy of the electricity bill and sought quashing of a Tehsildar recovery notice, the writ was disposed of without examining the bill on merits by directing the consumer to approach the competent authority under clause 6.5 of the U.P. Electricity Supply Code, 2005 within 15 days, that authority to consider the case and pass appropriate orders in accordance with law within one month thereafter. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy

The Division Bench accepted the licensee's submission that clause 6.5 furnished the remedy for a disputed bill and relegated the consumer to that authority with a time-bound consideration direction, without quashing the recovery notice or correcting the bill. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL

Relegated to the clause 6.5 authority; the bill was not examined on merits.

NOT DECIDED — VALIDITY OF THE TEHSILDAR RECOVERY NOTICE DATED 29.7.2020

Certiorari was neither granted nor refused on merits.

NOT DECIDED — INSTALLMENT FACILITY FOR DEPOSIT OF THE BILLED AMOUNT

The prayer for easy installments was not decided.

